

Mr. AI Attorney at Law: AI in the Criminal Law System and the Right to Effective Assistance of Counsel

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**“ HOW WE DEFINE ‘EFFECTIVE COUNSEL’
TODAY WILL DETERMINE THE BOUNDARIES
OF JUSTICE FOR GENERATIONS TO COME. ”**

Abstract

Synthetic legal representation has generated a debate to determine whether AI learning models have a place in the legal profession. The tension between U.S. Constitutional privileges and protections and the increase of generative AI is only growing, imminently requiring the Legislature or Judiciary to proactively consider the right to counsel under the 6th Amendment. This paper explores whether the Sixth Amendment's guarantee of assistance of effective counsel in a criminal proceeding constitutionally requires human advocacy or could it be substituted by artificial intelligence. Found in the landmark case *Strickland v. Washington*, the right to counsel requires effective representation by a showing of: (1) deficient performance by counsel, (2) that performance prejudiced towards the jury. With an increased public interest in new technology at issue with data privacy, attorney client privilege and the roll out of products like Harvey AI, which has already been integrated into over one thousand law firms, the demand for a constitutional answer has begun to be hotly disputed and debated. [1] This paper will answer whether it is legal e for Artificial Intelligence to provide effective counsel, what level of oversight would potentially be constitutionally required, and whether AI could increase national access to justice. Artificial intelligence cannot substitute human advocacy because, at present, it does meet the threshold as defined by the Strickland efficiency test. Specifically, the lack of technological accountability and bias introduce deficiencies in performance. Further, concerns of confidentiality and lack of fidelity present clear and distinct potential prejudice towards jury members. As courts, legislatures, and law schools begin to reconcile with this transformation, how we define "effective counsel" today will determine the boundaries of justice for generations. The proposed policy change is to introduce an intermediate scrutiny test for permitting the use of AI that does not prevent a misrepresentation from the Sixth Amendment.

I. Introduction

Robotic weaponry, image generation, and synthetic therapy have one thing in common: potentially dangerous uses of Artificial Intelligence (AI). As examples, AI can quickly get abused without proper protection mechanisms to maintain law of war principles within the realm of robotic weapons, prevent the creation of cartoon child pornography through image generation, or halt artificial therapy from negatively influencing people to harm others and themselves before a tragedy. However, the question remains: who is to blame when technology fails to account for human consciousness or when it cannot impute human judgment? As AI advances, humans must emphasize the importance of maintaining human input through critical touchpoints with technology, particularly in fields that demand accountability, ethics, and fidelity. [2] The rapid development of AI necessitates a rigorous re-evaluation of the jurisprudential underpinnings of privilege and constitutional defense. The legal profession is currently witnessing a shift from digital tools for practitioners to the risk of potential AI replacements. This evolution challenges the traditional boundaries essential to the proper functioning of the criminal justice system.

Since the ratification of the Sixth Amendment in 1791, the right to “effective assistance of counsel” in a criminal setting has been interpreted as a constitutional guarantee to an accused in a criminal proceeding. Moreover, it is a guarantee of personal, professional legal advice, ethical representation, and zealous advocacy. As these systems become more capable, a novel dilemma is presented: whether the Sixth Amendment right to “effective assistance of counsel” requires meaningful human involvement in criminal defense representation, like litigation, when AI systems may equal, or soon outpace, the abilities of even the best, although still human, legal minds.

Although emerging AI systems may soon rival or exceed human attorneys in drafting, legal research, and legal writing, the Sixth Amendment’s guarantee of right to counsel mandates effective assistance which current AI systems cannot satisfy. Current AI lacks accountability, possesses inherent bias based on datasets which effectively renders its advice deficient, does not adequately possess

means of protecting client confidentiality, and wholly lacks fidelity, resulting in clear and distinct discriminatory effects which could prejudice potential jury members. By denying the use of artificial attorneys, the legal system will maintain its constitutionally grounded principles founded within the Sixth Amendment and protect the right to “effective assistance of counsel” as defined by the Strickland efficiency test.

This paper proceeds in three parts: (1) background, (2) analysis, and (3) policy consideration. First, this paper examines the text, history, and early interpretations of the Sixth Amendment with the introduction of the right to effective assistance of counsel. Second, this paper analyzes in detail whether artificial intelligence can satisfy this constitutional standard with four key deficiencies: (1) the lack of clear accountability for AI systems; (2) the inherent bias of AI; (3) AI’s inability to preserve confidentiality between client and attorney; and (4) the absence of fidelity for the client. Finally, the paper addresses efficiency considerations for AI and emphasizes the constitutional importance of the right to counsel regardless of the efficacy of AI.

II. Background

A. Text and Foundation

The Sixth Amendment to the United States Constitution provides that: “In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State... and to have the Assistance of Counsel for his defence.” [3] At its core, the Sixth Amendment grants all individuals, under prosecution by the United States government, State governments, or district prosecutors, basic privileges to ensure fair and equal application of the law. [4] In the Sixth Amendment toward the end of the amended section, the right to the “assistance of counsel” outlines a defendant’s right to fairness within the legal system, ensuring that they retain the ability to meaningfully respond to charges brought by the government. These privileges remain absolute and are the core of the United States’ legal system because as noted by the Supreme Court in *Cronic*, “[o]f all the rights that an accused person has, the right to be represented by counsel is by far the

most pervasive, for it affects his ability to assert any other rights he may have.” [5]

Importantly, the text of this Amendment does not merely reference the presence of counsel, rather, the assistance of counsel. [6] This right has been deemed so essential to the proper functioning of the judicial system that “[e]ven in instances in which a defendant wishes to waive counsel, “[t]he Constitution does not forbid States from insisting upon representation by counsel for those competent enough to stand trial but who suffer from severe mental illness to the point where they are not competent to conduct trial proceedings by themselves.” [7] This principle also imputes a standard of meaningful representation. Additionally, to understand the full scope of the Sixth Amendment, it is necessary to understand the history and purpose of the amendment. Although interpretative approaches may differ, whether grounded in originalism, living constitutionalism, political theory, or pragmatism, all perspectives require an inquiry into the purpose of the right to counsel and what underlying issues this guarantee seeks to address and overcome.

B. Historical Analysis

The right to counsel in criminal courts has its history founded in English common law. [8] Under English common law, defense attorneys were not guaranteed participation on behalf of their client in felony cases, until the 18th century. [9] Prior to the American Revolution, reform movements had secured more robust legal measures as an early identification of this issue. [10]

Then, during the American Revolution, the Colonies and their representatives at the Congressional Convention in Philadelphia found this basic principle critical to the preservation of the justice system and it was retained when ratifying the Articles of Confederation. Ratified in 1791, the Sixth Amendment guaranteed accused people the “Assistance of Counsel” in criminal prosecutions as a structural equalizer. [11] A consistent theme of the drafters of the constitution was protecting an individual from the awesome, overwhelming power of the government. As evidenced here, the right to counsel arose from concerns about this power disparity in trials under British rule, where

accused individuals were left to defend themselves against the English barristers, often completely without legal education, experience, or awareness. [12]

C. Early Interpretation

The Supreme Court's early interpretation of the Sixth Amendment transformed the right to counsel throughout the 20th century. [13] Initially, the right was understood by the exact wording of the constitution; however, through a series of decisions, the Supreme Court expanded the scope of the Sixth Amendment to ensure that defendants receive fair and just trials with effective legal representation.

One of the earliest interpretations of the Sixth Amendment right to counsel was in the 1932 Supreme Court case, *Powell v. Alabama*. [14, 15] In this case, nine black adolescents were accused of raping two white women. In the Alabama state court system, the adolescents were tried in three separate cases, each lasting less than a single day. The Alabama law at issue required that counsel be appointed in capital cases, however the assigned defense counsel had failed to consult their clients. All nine were sentenced to death. The defendants appealed and were granted a hearing at the United States Supreme Court. [16] The Court analyzed elements of the 14th Amendment's due process clause and the origin of those laws. [17] In the concurring opinion, Justice Sutherland stated that this clause was derived from the 6th Amendment. Justice Sutherland referenced the "[a]ssistance of counsel" in his opinion and stated that this assistance must be granted in capital cases. [18] Thus, the Supreme Court held that, in capital cases, the right to counsel is a fundamental and essential for issuing the ultimate form of punishment: death. [19] This forced states to finance and grant an accused counsel, specifically in capital cases.

Similarly in *Gideon v. Wainwright*, the Supreme Court extended the Sixth Amendment right to counsel to all state criminal prosecutions. [20] Clarence Gideon, charged with felony theft in Florida, denied counsel because he could not afford an attorney. At the time, Florida law required counsel to be financed by the state only in capital cases. [21] Subsequently, Gideon's request for a state defender was denied on the grounds of Florida Law. The Court examined that a fair trial cannot be

guaranteed if the defendant lacks legal expertise. [22]

“It might, however, be said that there is such an implication in *Avery v. Alabama*, 308 U. S. 444 (1940), a capital case in which counsel had been appointed, but in which the petitioner claimed a denial of “effective” assistance. The Court, in affirming, noted that, “[h]ad petitioner been denied any representation of counsel at all, such a clear violation of the Fourteenth Amendment’s guarantee of assistance of counsel would have required reversal of his conviction.” [23]

This reasoning represents the Court’s recognition that effective legal representation is essential to ensuring fairness within the criminal justice system. [24] Gideon’s conviction was overturned because the state had granted him to waive his right to counsel while Gideon was in an unknowing and involuntary state. [25] This case expanded the scope of the requirement of states for providing counsel ensuring that if someone chooses to waive this right that they do so in a knowing and voluntary state.

The Supreme Court further refined their interpretation and the meaning of effective in *Strickland v. Washington*, establishing the modern test for *effective* counsel. [26] In *Strickland*, the defendant argued that his attorney’s failure to investigate mitigating evidence constituted ineffective representation. [27] The Supreme Court analyzed the definition of effective counsel when considering a defendant’s right to assistance of counsel, as provided by the Sixth Amendment. [28] Notably, the court held “the essential aim of the Amendment is to guarantee an effective advocate for each criminal defendant.” In the opinion, the Court agreed that the Sixth Amendment guarantees more than the mere presence of counsel and articulated a two-pronged test for effectiveness. [29] Justice O’Connor provided the two-pronged test by defining just the opposite. Counsel can be deemed *ineffective* when: (1) counsel’s performance was deficient, and (2) the deficiency prejudiced the defense. [30]

Taken together, these decisions by the Supreme Court establish that the Sixth Amendment is not just the presence of counsel, rather the right of effective counsel for each accused. It establishes the baseline for all

other constitutional rights in the criminal justice system as, without effective counsel, there would be no 4th Amendment search and seizure issues, 5th Amendment right to remain silent issues, or 14th Amendment due process issues raised on behalf of the defendant. Further, there may be no *Brady v. Maryland* discovery violations or *Giglio* notices of exculpatory evidence disclosed to the defense. [31]

In sum, the Sixth Amendment right to effective counsel is the lynchpin in the criminal justice system upon which a just and fair application of the law rests. The question presented in this paper is founded on these cases and requires the definitions to be answered.

III. Analysis

A. Framing the Problem

Artificial Intelligence (AI) systems are now capable of performing high-level legal tasks such as generating arguments, analyzing objections and rules of evidence, researching applicable case law, and even formulating defense strategies. However, the current Sixth Amendment right to counsel and Fourteenth Amendments Due Process clause interpretation requires human advocacy because of the ineffectiveness, lack of judgment, and high risks of AI. The core issue is engulfed by the constant tension between constitutional law, theory, and practice, and ever-evolving, emerging technological breakthroughs.

B. Liability

A central component of effective assistance of counsel under Strickland is the ability to identify and evaluate deficient performance. At the core of the legal system is the principle that a party is harmed, they seek a remedy. The purpose of such a suit is to hold the responsible party accountable for the wrong. Specifically, in the criminal context, when an individual is charged, tried, and convicted, the accused is held responsible and criminally liable for their wrongdoing. This foundational principle of accountability in legal systems becomes increasingly difficult to ascertain if the wrongdoer is not human. Through existing frameworks, AI systems cannot be held professionally responsible for errors, unknown biases, and legal discrepancies. [32] For example, when an artificial intelligence system produces an incorrect business

strategy or reports inaccurate financial data, corporations are often left uncertain as to who should be held responsible for the resulting harm. [33] According to Cornelia Walther, responsibility in AI systems often “cascades across multiple levels – from developers to corporate boards to regulators.” [34] This interpretation on fragmenting responsibility in the business world regarding AI is a direct and intolerable problem. Hazardous scenarios include losing valuable talent and participation from employees. [35] Similarly, in legal practices, the use of AI creates even more serious concerns.

The issue of accountability becomes even more pronounced under traditional tort law standards. As a recent analysis by the RAND Research & Commentary Reports “Liability for Harms from AI Systems,” the complexity of artificial intelligence makes it increasingly difficult to determine which party is legally responsible for harm. [36] “Courts could find it difficult to apply negligence law to AI because of the complexities of AI development and the AI ‘supply chain’ between AI developers and deployers, both of which could make it difficult to identify negligent behavior and the party responsible for an alleged harm.” [37]

As recently as March of 2026, large technology companies, YouTube and Meta, were for the first time held liable for the harm their targeting AI algorithms cause to children. In *K.G.M. v. Meta et al.*, the companies were found liable for intentionally engineering products to maximize addictiveness which led to severe impacts on the psychological wellbeing of young users. This liability was distinguishable from prior products liability holdings because it centered on the design of the algorithm rather than the content posted on the websites. [38] Additionally, while the Ninth Circuit Court of Appeals ruled that Section 230 of the Communications Decency Act, the tool to traditionally deflect liability from host websites, is an affirmative defense at trial instead of a pretrial motion so many additional trials targeting AI design and who bears the liability for it are forthcoming. [39] The likely forthcoming circuit split and disjointed quality of assigning liability in tort cases grows exponentially more concerning when applied to the Sixth Amendment’s right to counsel guarantees.

If courts cannot identify a responsible actor, defense counsel that failed in their representation, they cannot meaningfully evaluate whether counsel's performance was deficient and, in turn, this imposes prejudice towards the jury based on those discrepancies. [40] Unlike mortal attorneys, who are subject to the professional rules of conduct and discipline, artificial intelligence systems cannot be sanctioned, disbarred, or held personally accountable for providing inefficient counsel. [41] Responsibility instead falls within a supply chain of custody diffused among developers, deployers, and users. As a result, the legal system is left without a clear mechanism to address deficiencies with "Mr. AI, Attorney at Law," undermining the core guarantee of accountability embedded in the right to counsel.

Furthermore, the complexities of AI are prevalent in the *unexplainability* of artificial intelligence systems. This *unexplainability* is often referred to as the "black box" problem because it refers to a system whose internal workings are hidden from view. [42] The black box problem is extremely risky for accountability purposes within the legal system. For example, often in criminal cases, a central issue is the determination of *mens rea*. Proving or disproving intent and reasoning behind an action. However, AI cannot justify its actions with code or explanations because of the Black Box problem. As a result, the trier of fact would be left without a clear basis to evaluate intent or assign fault in the decision-making process.

C. Bias

Hypothetically, before trial, a defendant is given a choice between two forms of counsel: a barred attorney or an advanced artificial intelligence system. "Mr. AI, Attorney at Law," has been trained by thousands of closed cases, specifically, it has received data from all available cases, records, and historical information. Therefore, its legal recommendations are necessarily shaped by the patterns and outcomes embedded within the data, creating the ultimate confirmation bias. In its current state, Artificial Intelligence is incapable of generating new ideas. [43] Instead, AI uses the information available to it from a data set, developers and users set the bounds for how much information is entered, and the AI will predict the most probable next step, argument, or outcome based on that dataset. [44]

These narrowed data set an AI learns from draws concerns of bias. As recognized by UNESCO, AI decisions are susceptible to inserted biases. [45] For instance, UNESCO highlights that a simple search for “greatest leaders of all time” often produces results overwhelmingly composed of male figures, because AI-systems utilize search-engine technology to find the most probable result. [46] As mentioned, search-engines are not neutral and priorities results with the “most clicks relying both on user preferences and location.” [47] These concerns are not isolated but have the capability of branching to other facets of the rule of law, such as ethics. As emphasized in *Legal Ethics and the Rule of Law*, attorneys are bound by standards and duties, including maintaining candor to the tribunal, a base-level of competence, and the ultimate accountability. [48] These standards, as identified, are customary for all attorneys, including artificial attorneys of the future. Any legal representation or counsel should be bound by the rules of professional conduct, without exception. [49] As a part of the rules of professional conduct, legal representation must not discriminate or hold biases for counsel or proceeding assistance. [50] AI, in its current form, holds its inherent predictability bias based off of the datasets entered in the large learning model. [51] For example some products already being utilized, such as the AI system COMPAS, assigned higher recidivism scores to black defendants than to white defendants with the same or similar records when conducting risk assessment inquires. [52] The risk of learned discrimination that AI poses prevents it from complying with ethical constraints required by legal practitioners.

Because AI systems maintain learned confirmation bias which leads to inherent discrimination and ethical concerns, AI cannot provide effective representation as required under the Sixth Amendment until this issue is adequately remedied. Accordingly, a system that risks providing discriminatory outcomes, based on a dataset it learned from, the constitutional guarantee of *effective* assistance of counsel as identified by Strickland cannot be satisfied.

D. Confidentiality

Client confidentiality is a foundational principle of proper advocacy and required for effective legal representation. [53] The confidentiality between client and attorney is essential to ensure clear communication

and function as legal counsel. Furthermore, the ABA Model Rules of Professional Conduct do not permit attorneys to share any information related to their client without informed consent from the client to reveal that information. [54] The purpose of this protection is to ensure accused are comfortable being honest and open with their counsel without fear of reprisal. This protection is nearly absolute. The punishment for revealing sensitive information of a client by a defense attorney often automatically triggers an investigation and can lead to a suspension or revocation of a bar license to practice law. [56] As identified by the article *What is Client Confidentiality*, a confidentiality leak stays with a professional for the rest of their career and can adversely affect the ability to be retained in the future, in extreme cases even effectively ending their careers. [57]

This is the foundation of the concern of Artificial Intelligence releasing sensitive information without penalty, because they are not members of the bar. Regardless of the implications of accountability, the sheer risk of information not being controlled is apparent. For example, data leakage may occur when an AI system reveals information from prior inputs, or when unauthorized actors exploit weaknesses. [58] A third party can easily access information through tricking the system into giving personal or sensitive information. [59] This data spillage happens almost constantly. [60] No matter the brand, the company, the dataset, or the inputs of the user, AI cannot sufficiently protect information, including developers, moderators, or government regulators, let alone the obvious risk of simple user negligence. [61] Confidential communication, like notes, defense strategies, or even an admission to guilt would be unprotected from AI databases and could be used by the government, potentially causing a mistrial. [62] Accordingly, the use of artificial intelligence in legal representation fundamentally erodes the protections granted by confidentiality thus does not meet the threshold of effective counsel as outlined by the Supreme Court. The artificial system that requires inculpatory information to generate a result cannot guarantee the privacy of client information and trial strategy cannot satisfy the Sixth Amendment guarantees of *effective* assistance of counsel.

On the other hand, the *Heppner* case provides an alternative view on the

use of AI within the scope of confidentiality. [63] In *Heppner*, the defendant used an AI chatbot to assist in preparing documents related to his defense on charges of fraud and of false statement. [64] The FBI searched Heppner's belongings, with a warrant, and seized his devices that contained the documents generated by the chatbot. [65] The Southern District of New York ruled that attorney-client privilege did not apply because of the use of a third-party and this was clearly distinguishable from cases like *Carpenter v. United States* where cell-site data on a cell phone was found to be protected. [66]

The Court's analysis was founded on the idea that Mr. Heppner was comfortable sharing the information with someone outside of his attorney; therefore, the information is not privileged to the protection of confidentiality. However, this interpretation, if applied broadly, would extend to a vast number of tools routinely used in modern legal practice. Third-party technologies, such as email and research engines, are increasingly utilizing AI in less obvious and more insidious ways, often automatically utilizing AI to generate results or suggest email edits for human ease of use. [67] The use of these tools does not automatically relieve a user of confidentiality merely because they have AI systems, but the argument that documents generated by a bot are not privileged will likely not be construed so broadly in future cases.

Rather, the Court outlined four considerations that, when taken together with the totality of the circumstances, determine whether privilege applies: "(1) how the AI tool is used; (2) which platform is used and whether it is consumer-grade or enterprise-secured; (3) who directs the AI use (counsel versus client or pro se litigant); and, (4) what the AI platform's terms of service permit regarding data handling, training, and confidentiality." [68] These pseudo-factors suggest that at the core of the court's analysis regarding AI is more about the user and their purpose than it is about what they are using it to accomplish. A lawyer using AI to research a novel legal nuance seems to fall squarely in the privileged category while a client looking to double check their attorney's work via Mr. AI consult, like Heppner, seems to fall squarely outside of the privilege.

However, critics argue that the Heppner holding represents a judicial

misunderstanding of AI. By ruling that a defendant automatically waives confidentiality by disclosing defense strategies to a bot, the court essentially anthropomorphized the software, treating the model as if it were an independent, human third-party instead of a tool. [69] Obviously, AI does not possess independent consciousness or external thoughts; they are mathematical and data processing machines. [70]

AI also remains structurally prone to data spillage and leaks because prompts are processed on external servers and potentially reviewed by human content moderators. [71] This creates a vulnerability where sensitive data leaves the control of the defense. Disclosing defense strategies to an application that retains and learns from that data constitutes disclosure, fundamentally eroding the confidentiality protections essential to the Sixth Amendment. [72]

Conversely, the Eastern District of Michigan carved out a protective distinction based on litigant status in *Warner v. Gilbarco, Inc.* (2026). [73] Warner, a pro se litigant, admitted to utilizing OpenAI's ChatGPT for drafting her legal filings. [74] The defendants subsequently moved to compel the production of her entire chat history, arguing that no attorney-client relationship existed. The court denied the motion to compel. Recognizing that the Work Product Doctrine operates to protect a zone of privacy in which a litigant can freely analyze facts and develop legal strategies, and relying upon the historical rationale of *Anderson v. Furst* (2019), the court held that because a pro se litigant simultaneously serves as both client and counsel, the traditional direction of counsel requirement is inherently satisfied within their own person. [75] Warner's ChatGPT prompts constituted the digital record of her own thoughts, legal theories, and potential strategies and to compel their disclosure would grant the opposing party an unwarranted peek into her mind.

Notably, the distinction between *Heppner* and *Warner* is a matter of user status. For a represented criminal defendant, independent use of a commercial AI tool falls entirely outside the attorney's protected professional sphere. [76] In contrast, the pro se litigant's AI prompts are properly categorized as work product and viewed as the digital equivalent of a human lawyer's handwritten notes. By employing AI as a

legal tool, the pro se litigant is engaging in the protective act of lawyering, which must be shielded from an adversary.

Further, perhaps the more burgeoning question is regarding AI's ability to maintain privacy and whether AI preserves a reasonable expectation of privacy. While the use of third-party tools does not inherently defeat the privilege of confidentiality, the risks presented by artificial intelligence are fundamentally different because AI both processes and stores personal information over time, essentially "learning" their user, creating a grave concern for the preservation of confidentiality as presented in the Heppner case. A third-party system that cannot guarantee the protection of client communications cannot support the trust and privacy necessary for effective legal representation under the Sixth Amendment.

E. Fidelity

Fidelity is defined as a "level of loyalty or faithfulness," and it lies at the heart of the attorney-client relationship. [77] This principle requires that counsel act with undivided loyalty, exercising judgment separated from independent interests and only guided by the interest of the client. [78] The lack of extreme loyalty by an ineffective counsel can result in "significant financial and legal recourse for the breaching party." [79] The Supreme Court has long recognized that effective legal representation depends upon this form of loyal advocacy. In *Gideon v. Wainwright*, the Court emphasized that a fair trial cannot occur if the defendant is deprived of a competent counsel capable of advocating on behalf of said defendant. [80] Furthermore in *Strickland v. Washington*, the Court clarified that effective assistance, through Justice O'Connor's opinion, requires the exercise of professional judgement made with the commitment to serve the client's interests. [81] These decisions confirmed that effective counsel and the inherent right to counsel as outlined by the Sixth Amendment requires the introduction of a zealous and loyal advocate committed to the interests of the accused.

In the current stage of Artificial Intelligence, loyalty and commitment are continually at odds with programming. For example, in the 2025 study by Sewoong Oh, strategies designed to control AI's ability to maintain loyalty to a user were tested on the level of engagement and

continual support for the user's interests. [82] The study found that "loyal" AI is not inherently loyal to an individual user, but rather to the broader dataset available to the AI. [83] The study labelled this dataset as the "community" from which the AI was trained. [84] Applying this to the right to counsel, the principle of fidelity requires loyalty to client interests regardless of information, content, or context of the situation, current politics, or the encyclopedia of information that can be provided. AI inherently cannot uphold this extreme standard at its current phase, thus, under the *Strickland* test for effectiveness, AI cannot satisfy the Sixth Amendment guarantee aiding of Counsel to defendants.

F. Efficiency

It is appropriate to address dissenting opinions based on the right to counsel being guaranteed by an artificial system, thus potentially ending the access to justice problem. The first major counter argument is that Artificial Intelligence increases efficiency and is inexpensive. As stated in *Strategic Artificial Intelligence Use in Litigation Practice*, tools such as DeepJudge and Harvey AI have demonstrated substantial gains in efficiency including 60% faster discovery times, 85% adoption rates among attorneys, and increased improvements in satisfaction. [85] However, this is a false equivalence as the Sixth Amendment requires effective counsel measured via qualitative measures, rather than quantitative. As identified by *Strickland*, the "objective standard of reasonableness" is judged based on the set standards embargoed on licensed counsel such as principles of fidelity and confidentiality. [86] Thus, the risk involved with the unexplainability of AI substantially outweighs the efficacy of AI reported by quantitative measures. Further, the potential for abuse of the AI system and endless mistrial investigations would counter the gain in efficiency as identified by the research.

IV. Policy Consideration

Due to the dangers of AI utilization in its current form, the test for allowing the use of AI as counsel for defendants in criminal cases should be that of intermediate scrutiny. For example, the new test for determining AI's usage to be incorporated into the Sixth Amendment's Right to Counsel clause should follow intermediate scrutiny: (1)

substantial government interest such as increasing access to justice; and (2) narrowly tailored to a function that does not replace core principles of human legal advocacy, such as fidelity or confidentiality.

Substantial Government Interest

In this proposed policy, the government must prove a substantial government interest in the regulation or restriction with the use of AI in providing counsel to a defendant. Specifically, the government interest must be grounded in increasing areas of clear efficiency and increasing access to justice. Examples that meet this interest may include small, rural counties with no or few criminal defense attorneys or perhaps even limiting AI usage to lower-level traffic citations or misdemeanor offenses which have much lighter potential sentences. The test of effective set by Strickland, derived from the opinion of Gideon and the importance of counsel precedent set in Powell, ensures that the counsel is more than suitable for providing legal assistance and representation for the defendant. If the government is unable to prove that the total effectiveness of an AI counsel is proportional to the test set by Strickland and has clear significance in governmental efficiency, then it may be permissible.

Narrowly Tailored

It is not sufficient for the AI to meet a substantial government interest alone. The test must be narrowly tailored to the function of just defense. This limitation does not extend to supportive tools such as research, legal writing, statistical analysis, grammatical revisions, or overall case preparation and organization. Nor does it necessarily prohibit the use of an AI prosecutor. If the government chooses AI counsel as efficiency over effectiveness, that is a burden on the government. Strickland does not apply the efficiency test to prosecutors; thus, the government can choose to be more efficient but must take on the liability of the lack of effectiveness with current AI. By restricting functions that are not threatening to the core principles of legal advocacy, such as confidentiality or fidelity, the government would consequently become ineffective and less efficient. Furthermore, attorneys across the United States already rely on a variety of tools that incorporate AI including Microsoft's Co-pilot, Harvey AI, legal research databases such as LexisNexis, and automation software observed in Adobe. [87] These

technologies have embedded AI into their mechanics. As such, a restriction on these appropriate uses of AI would undermine the efficiency and effectiveness of modern legal representation. A narrowly tailored approach ensures that AI may advance without disrupting effectiveness, which is essential for the Sixth Amendment's Right to Counsel.

V. Conclusion

While Artificial Intelligence is becoming inculcated in the day-to-day rhythm of society with unparalleled speed, its role must be carefully confined to assistance, never true representation. The Sixth Amendment's guarantee of counsel was born from a tradition that values accountability, human judgment, and loyalty to the principles that form the basis of democracy. Embedded within those values, AI cannot be held ethically or professionally accountable, uphold the duty of candor to the tribunal, comprehend human dignity, or act with fidelity to our constitutional system due to its informational biases and established issues, including the Black Box problem. Its undoubtable ability to enhance the practice of law and provide access to justice cannot be ignored; however, the justice system must tread carefully and embrace a model that follows with the ideals of intermediate scrutiny. Holding that the use of AI must have a substantial government interest like efficiency, be narrowly tailored to a function that is not legal advice or litigation and be the least restrictive means by allowing human attorney oversight and representation.

Notes

[1] Harvey, "Legal AI ROI Calculator for Law Firms," Harvey, accessed August 12, 2026, <https://www.harvey.ai/roi-calculator/law-firm>.

[2] Surden, Harry. "Artificial Intelligence and Law: An Overview Recommended Citation." Georgia State University Law Review, 1 June 2019. <https://readingroom.law.gsu.edu/cgi/viewcontent.cgi?article=2981&context=gsulr>

[3] Congress.Gov. "U.S. Constitution Sixth Amendment Resources Constitution Annotated Congress.gov Library of Congress." Constitution.congress.gov, constitution.congress.gov/constitution/amendment-6/

[4] *Id.*

[5] National Association of Criminal Defense Lawyers "Right to Counsel" citing United States v. Cronin, 466 U.S. 648 (1984). <https://www.nacdl.org/Landing/Right-to-Counsel>

[6] *Id.*

[7] *Indiana v. Edwards*, 554 U.S. 164 (2008), quoted in National Association of Criminal Defense Lawyers, "Right to Counsel," NACDL,, <https://www.nacdl.org/Landing/Right-to-Counsel>.

[8] Hans Zeisel, "Jury Britannica," in *Encyclopedia Britannica*, 2020, <https://www.britannica.com/topic/jury>

[9] *Id.*

[10] *Id.*

[11] Stephanos Bibas and Jeffery Fisher, "Interpretation: The Sixth Amendment Constitution Center," National Constitution Center – constitutioncenter.org, 2020, <https://constitutioncenter.org/the-constitution/amendments/amendment-vi/interpretations/127%203>.

[12] *Id.*

[13] *Id.*

[14] "Powell v. Alabama." Oyez. Accessed April 27, 2026. <https://www.oyez.org/cases/1900-1940/287us45>.

[15] Powell v. Alabama, 287 U.S. 45 (1932); see <https://supreme.justia.com/cases/federal/us/287/45/#tab-opinion-1933739>

[16] *Id.*

[17] *Id.*

[18] *Id.* at 53; *Id.* at 66

[19] *Id.*

[20] Gideon v. Wainwright, 372 U.S. 335 (1963); see <https://supreme.justia.com/cases/federal/us/372/335/#tab-opinion-1944169>

[21] *Id.* at 337.

[22] *Id.* at 342.

[23] *Id.* at 343.

[24] *Id.* at 344.

[25] *Id.* at 335.

[26] *Strickland v. Washington*, 466 U.S. 668 (1984); see <https://supreme.justia.com/cases/federal/us/466/668/>

[27] *Id.* at 680.

[28] *Id.*

[29] *Id.*

[30] *Id.* at 682 (deficient performance); *Id.* at 712 (demonstrable prejudice).

[31] *Brady v. Maryland*, 373 U.S. 83 (1963); *Giglio v. United States*, 405 U.S. 150 (1972).

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